2026:AHC:110600

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 18764 of 2026

Panchsheel Hynish Apartment Owners Association
And Another
.....Petitioner(s)

Versus

State Of U.P. And 3 Others
.....Respondent(s)

Counsel for Petitioner(s)	:	Gautam Baghel, Om Prakash Singh
Counsel for Respondent(s)	:	C.S.C.

Court No. - 38

HON'BLE SIDDHARTH NANDAN, J.

1. Heard Shri Gautam Baghel, learned counsel for the petitioners, Shri Nikhil Kumar, learned counsel appearing on behalf of respondent no.4 and learned Standing Counsel for the State-respondents no. 1 to 3.

2. Shri Gautam Baghel, Advocate has submitted that the last elections were held on 22.03.2025; but however the same was discarded by the Deputy Registrar vide order dated 15.05.2025; and the same was subjected to challenge before this Court by way of Writ-C No. 17915 of 2025 and this Court, vide a detailed order dated 01.08.2025, had set aside the order dated 15.05.2025; and remitted the matter back to the Prescribed Authority, to take a decision afresh.

3. Since the Court found that respondent no.2, under Section 25 (2) of the Act, 1860, gave only consideration to some violation of procedure but did not return any finding or gave conclusions regarding the requirement of provision under Section 25 (2) of the Act, 1860; and accordingly, the dispute was referable to the Prescribed Authority under Section 25 (1) of the Act, 1860.

4. He has further submitted that the said order of this Court was only placed before the Prescribed Authority on 19.10.2025, after the expiry of the period of eight weeks, as contemplated in the order; but however, after receiving a copy of the order, it was incumbent upon the Prescribed Authority to proceed under Section 25 (1) of the Act, 1860.

5. However, an order was passed on 09.10.2025, directing the parties

concerned to maintain *status quo*; and thereafter another order was passed on 27.02.2026 by way of which the petitioners were directed not to take any policy decision; and since the term of the Committee was expiring, the election was notified, it was further provided that the election may not be held.

6. Learned counsel for the petitioners has further submitted that they have taken specific objection that since the reference was not made by 1/4th members of the Society, therefore, the reference itself was not maintainable and even otherwise, since the term of the Committee had already expired on 21.03.2026, therefore, the reference no longer survives; but without adverting to the said objections, it has merely been considered in the impugned order that since the orders dated 07.02.2026 and 19.02.2026, have been violated and therefore, the elections which were held on 22.03.2025, cannot be sustained.

7. Learned counsel for the petitioners has further argued that the said finding is absolutely perverse and though there is an alternative remedy provided under Section 25(1)(d) of the Act, 1860, it is not an efficacious remedy; and also since there was a specific restraint by the Deputy Registrar for not holding the elections, though the same was notified on 21.02.2026, even the consequential order dated 29.04.2026 passed under Section 25 (2) of the Act, 1860 cannot be sustained. He has further submitted that there is no appeal provided against the order dated 29.04.2026 passed under Section 25 (2) of the Act, 1860; and the only remedy available to the petitioners is by way of approaching this Court, under Article 226 of the Constitution of India.

8. Per contra, learned counsel for the respondent no.4 has submitted that though in the impugned order dated 24.04.2026, the issues which were required to be determined under Section 25 (1) of the Act, 1860 have not been dealt with, but now since the term has already expired and the petitioners have not held the elections, there is no infirmity in the order dated 29.04.2026; but as far as the order dated 24.04.2026 is concerned, he has fairly submitted that it has not been passed, as per the parameters of Section 25 (1) of the Act, 1860.

9. The learned Standing Counsel also could not point out from the

impugned order dated 24.04.2026 that the grounds as required by this Court's order dated 01.08.2025 passed in Writ-C No. 17915 of 2025, was not even adverted to; and in view of the aforesaid he submits that the impugned order may be set aside and the matter be remitted back to the Prescribed Authority for fresh determination, to which learned counsel for the respondent no.4 also does not object. For ready reference, the operative portion of the impugned order dated 24.04.2026 is being reproduced below:

> "मेरे द्वारा दोनों पक्षों के विद्वान अधिवक्ताओं की ओर से प्रस्तुत बहस व साक्ष्यों का अवलोकन किया गया। उपरोक्त दिये गये तथ्यों से स्पष्ट है कि प्रतिवादी द्वारा डिप्टी रजिस्ट्रार के आदेश की निरंतर अवहेलना की गयी है। दिनांक 19.02.2026 को यथास्थिति बनाये रखे एवं किसी भी प्रकार की नितिगत सलाह/निर्णय न करने के सम्बन्ध में स्थगन आदेश पारित किया गया था किन्तु इसके बावजूद भी प्रतिवादीगण द्वारा दिनांक 19.02.2026 को चुनाव समिति गठन हेतु सभा आयोजित की गयी। दिनांक 22.03.2025 को सम्पन्न विवादित निर्वाचन में अंशधारिता प्रमाण पत्रों का वितरण में उपबन्धों का उल्लंघन किया गया है। डिप्टी रजिस्ट्रार के पत्र दिनांक 07.02.2026 के द्वारा वाद का निस्तारण विहित प्राधिकारी द्वारा होने तक कार्यकारणी के नितिगत एवं बडे वित्तीय निर्णयों पर रोक लगायी गयी थी परन्तु प्रतिवादीगण द्वारा उक्त आदेशों की अवहेलना की गयी है। इस प्रकार उपरोक्त तथ्यों के आलोक में अनेक अनियमित्ताएँ निर्वाचन दिनांक 22.03.2025 में पायी गयी है। ऐसी स्थिति में वादी का वाद स्वीकार करना न्यायोचित प्रतीत होता है।
>
> **<u>आदेश</u>**
>
> अत: उपरोक्त तथ्यों के दृष्टिगत वादी का वाद स्वीकार कर सोसायटी का चुनाव दिनांक 22.03.2025 निरस्त किया जाता है। उक्त आदेश की प्रति डिप्टी रजिस्टार महोदय, फम्रस, सोसायटी एवं चिट्स, गाजियाबाद को इस निर्देश के साथ प्रेषित कि संस्था/ समिति की कार्यकारिणी गठन के सम्बन्ध में निर्वाचन हेतु नियमानुसार कार्यवाही कराना सुनिश्चित करें। इस न्यायालय की पत्रावली बाद आवश्यक कार्यवाही दाखिल दफ्तर हो।"

10. This Court finds that the objection relating to the maintainability of the reference under Section 25 (1) of the Act, 1860 was specifically raised by the petitioners and it was also recorded in the impugned order; but the impugned order has been passed without adverting to the requirements of Section 25(1) of the Act 1860 and as desired by this court in its order passed in Writ-C No. 17195 of 2025, dated 01.08.2025; and further the manner in which the elections held on 22.03.2025 has been discarded, shocks the conscious of this Court, as any subsequent event cannot invalidate an election, which was held in the year 2025; and as such by

non-consideration of the grounds taken by the petitioner, the impugned order is liable to be set aside on the grounds of violation of principles of natural justice and the same being absolutely perverse.

11. The court is also conscious of the fact that there is an alternative remedy provided under Section 25 (1) (d) of the Act, 1860, but in view of the admission of the learned Standing Counsel and learned counsel appearing on behalf of respondent no.4 that the issues raised was never adverted to by the Prescribed Authority, this Court finds that in the given circumstances, the present writ petition cannot be dismissed on the ground of alternative remedy, as there is admitted violation of the principles of natural justice. Accordingly, the order dated 24.04.2026 is hereby **set aside**.

12. I have also perused the impugned order dated 29.04.2026 and the Deputy Registrar has merely observed that since the election dated 22.03.2026 has been set aside and the elections have also not taken place, while the term of Committee of Management has expired, therefore, elections can be held, invoking the provisions of 25 (2) of the Act, 1860.

13. At this juncture, Shri Gautam Baghel, Advocate has relied upon Clause 26 of the model Bye-laws of the society. For the sake of convenience, the same is reproduced below:

> *"**26. Election and term of office -***
>
> - *(i) The annual general meeting of the Association, to be held in the first quarter of each financial year, shall elect neither less than 4, nor more than 10 Members including the President, Vice President, Secretary and Treasurer from Members of the Association. Provided that no member shall be eligible for election if he has been found guilty of misusing the post during his previous term. The term of office of the office-bearers of the Board shall be one year from the date of assuming office and they will be eligible for re-election. Provided that a person can not hold the same post continuously for more than 2 years.*
>
> - *(ii) An arrangement shall be made by the board to ensure that one third of members of the board retire annually.*
>
> - *(iii) The office bearers shall hold office until their successors have*

been elected and hold their first meeting."

14. Perusal of the aforesaid bye-laws, which has been duly approved by the Authority concerned; specifically under Clause 26 (iii), it has been provided that the office bearers shall hold office until their successors have been elected and hold their first meeting. Since the elections were notified on 21.02.2026, but could not be held on account of an order dated 23.02.2026; it cannot be said that the elections have not been proceeded with and therefore, now the election is to be held invoking the provisions of Section 25 (2) of the Act, 1860.

15. In view of the aforesaid, this Court finds it appropriate to relegate the matter to the Prescribed Authority to examine whether reference which was made under Section 25 (1) of the Act, 1860 was made in accordance with law, and to proceed only in case it is found that the reference was made to it by at least 1/4th members of the Society.

16. The aforesaid decision is to be taken within a period of one month, from the date of production of a certified copy of this order; whereafter the election of the Committee of Management shall be held accordingly, within a period of one month from the date of decision of the Prescribed Authority, under Section 25(1) of the Act, 1860.

17. With the aforesaid observations and directions, the writ petition stands ***disposed off***.

(Siddharth Nandan,J.)

May 13, 2026
Sumit K.

HIGH COURT OF JUDICATURE AT ALLAHABAD

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Counsel for Respondent(s)	:	C.S.C.

Court No. - 38

HON'BLE SIDDHARTH NANDAN, J.

In Re: Civil Misc. Correction Application No. 2 of 2026

1. This is an application for correction of the order dated 13.05.2026.

2. In view of the fact stated in the application, the application is allowed.

3. In the 2nd line of 4th paragraph of the order dated 13.05.2026, date "19.10.2025" shall be read as **"09.10.2025"**; in the 3rd line of 5th paragraph, date "27.02.2026" shall be read as **"07.02.2026"**; and in the 3rd line of 12th paragraph, date "22.03.2026" shall be read as **"22.03.2025"**.

(Siddharth Nandan,J.)

May 20, 2026
S.Prakash